Shower Guava Freedom Act

Proposed by Devin Lin

Version 1.0 | October 18, 2026

Citizen proposal — not introduced or enacted.

HIS MAJESTY, by and with the advice and consent of the Legislative Assembly of the Province of British Columbia, enacts as follows:

Definitions

1 In this Act:

"guava" means the edible fruit commonly known as guava, including portions of that fruit;

"public authority" means

(a) the government of British Columbia,

(b) a municipality, including the City of Vancouver, or a regional district, or

(c) a person exercising a statutory power on behalf of an entity referred to in paragraph (a) or (b).

Protection of personal choice

2 (1) Subject to section 3, a public authority must not, in exercising a power under a Provincial enactment, impose or enforce a prohibition, restriction or penalty solely because an individual consumes guava while showering in a private dwelling.

(2) Subsection (1) applies whether the prohibition, restriction or penalty is expressed as applying to guava specifically or to food generally.

Justified restrictions

3 Section 2 does not prevent a prohibition, restriction or penalty to the extent that it is reasonably necessary to address a specific risk, supported by reasonable evidence, to

(a) health or safety,

(b) property, or

(c) the operation of plumbing or sewer infrastructure.

Relationship with other enactments

4 (1) Sections 2 and 3 prevail to the extent of a conflict with a regulation, bylaw, order or administrative decision made under a Provincial enactment.

(2) This Act does not prevail over another Act of the Legislature.

Limits of application

5 Nothing in this Act

(a) alters private property rights or the lawful terms of a tenancy, strata bylaw or private contract,

(b) exempts an individual from an applicable federal law, or

(c) relieves an individual of liability for negligence or damage to property.

Government bound

6 Despite section 14 (2) of the *Interpretation Act*, this Act binds the government of British Columbia.

No offences

7 Sections 4 and 5 of the *Offence Act* do not apply to this Act.

Commencement

8 This Act comes into force on the date of Royal Assent.

Explanatory note - not part of the proposed Act

The draft establishes a limit on the statutory powers of the defined public authorities. Section 4 gives that limit priority over conflicting subordinate rules and decisions, but preserves other Acts. Section 7 excludes the default offence and penalty provisions. The proposal relies on existing public-law remedies rather than a new enforcement body.

Citizen proposal for legislative review. The scope of public authorities, interaction with other statutes and available remedies require review through a sponsoring MLA before introduction.